

25STCV35945 25STCV35945

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-07-29

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C517%2C07%2F29%2F2026

Source SHA-256: 255160ee871814340bcb0a038b2181c98d93850b465f7782cdefa164f5ece39f

Case Number: 25STCV35945 Hearing Date: July 29, 2026 Dept: 517

1032

N. Sycamore Owner (LA) LLC ("1032) sued Zeus Realty Group LLC ("Zeus) for unlawful detainer through which 1032 seeks to evict Zeus from real property that 1032 owns and leased to Zeus.

Pending before the Court is Zeus's demurrer to 1032's Complaint and motion to strike certain allegations in the Complaint. The Court is overruling the demurer and denying the motion to strike.

It is

axiomatic that a demurrer tests only the sufficiency of allegations in a pleading. The purpose of a demurrer is to assess whether the allegations state a cause of action. Consideration of extrinsic evidence outside the pleading's four corners is impermissible on a demurrer. (SKF Farms v. Superior Court (1984) 153 Cal.3d 902, 905; Hahn v. Mirada (2007) 147 Cal.App.4th 740, 747.)

In the

Court's view, the allegations in 1032's Complaint are sufficient to state a cause of action for unlawful detainer.

Zeus does not really contend otherwise in its demurrer. Rather, the demurrer is based on 1032's litigation position in the related civil action that Zeus brought against 1032 and that the Court has stayed pending the outcome of the unlawful detainer action. According to Zeus, the Complaint in the unlawful detainer action omits facts about certain issues bearing on the parties' lease that 1032 has raised as a defense through discovery responses and briefs in the civil action. However,

those purportedly omitted facts from the civil action stray beyond the contours of the Complaint in the unlawful detainer action that demarcate the scope of Zeus's demurrer. The Court may take judicial notice of the existence of 1032's discovery responses and briefs in the civil action to which Zeus points in the demurrer in the unlawful detainer action. Judicial notice of that material does not, however, establish facts to support Zeus's demurrer. Zeus may bring those facts to bear in a summary judgment motion in the unlawful detainer action or at the trial in that action. But they cannot defeat the well-pleaded allegations in 1032's Complaint for unlawful detainer that overcome Zeus's demurrer to it.

Zeus's motion to strike certain allegations in 1032's Complaint in the unlawful detainer action suffers from the same problem. The motion to strike rests on positions that 1032 has taken in the civil action. That is not the stuff of a proper motion to strike, which, like a demurrer, is limited to identifying defects within the boundaries of a pleading.

The Court directs Zeus to file and serve an answer to 1032's Complaint in the unlawful detainer action by August 4, 2026. The answer will supersede the "protective answer" that Zeus previously filed when it was contesting the validity of 1032's service of the summons and complaint in the unlawful detainer action.

The case management conference that is on calendar today in the unlawful detainer action is continued to August 7, 2026. At the conference, the Court intends to set a trial in the unlawful detainer action.

Also pending today is Zeus's ex parte application for an "administrative stay" of the unlawful detainer action pending the Court's consideration of a motion to consolidate the unlawful detainer with the civil action. The motion to consolidate is to be filed in the stayed civil action. Zeus has reserved a hearing date on the motion for August 28, 2026. The Court is declining to enter the stay of the unlawful detainer that Zeus seeks. The Court is, however, granting Zeus's separate ex parte application that it has filed in the civil action to lift the stay that

the Court imposed there. The Court is lifting the stay for the limited purpose of permitting Zeus to file its motion to consolidate the two actions. The Court also will advance the hearing date on the motion to consolidate from August 28, 2026 to August 7, 2026.